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LINE 5

24-CIV-08041

SHOBHANA HARTMAN VS. GENERAL MOTORS, LLC.

SHOBHANA HARTMAN
GENERAL MOTORS, LLC.

LARRY W CHAE
XYLON DAVID QUEZADA

GENERAL MOTORS LLC'S MOTION TO STRIKE PUNITIVE DAMAGES FROM PLAINTIFF'S SECOND AMENDED COMPLAINT

TENTATIVE RULING:

Defendant General Motors LLC's unopposed motion to strike to the fifth cause of action for fraudulent inducement-concealment raised in Plaintiff Shobhana Hartman's Second Amended Complaint (hereinafter "SAC"), filed March 17, 2026, is GRANTED.

Background

The underlying lawsuit is a Song-Beverly Act action regarding plaintiff's January 2, 2020, warranty contract with Defendant GM regarding a 2020 Cadillac XT6, vehicle identification number 1GYKPDRS8LZ134541 ("subject vehicle"), which was manufactured and/or distributed by Defendant GM. The subject vehicle was purchased at GM authorized dealer Michael Stead Cadillac in Walnut Creek, California. (SAC ¶ 6.)

Defendant brings the instant motion to strike on the basis that there is no basis alleged in the SAC for supporting a claim for punitive damages. The Court agrees.

Legal Standard

A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Code Civ. Proc. § 437; *Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342.) Where there are grounds for a demurrer and a motion to strike, they must be filed together and noticed for hearing at the same time. (Code Civ. Proc. § 435, subd. (b)(3) and Cal. Rules of Court, rule 329.) A motion to strike can be made to strike irrelevant, false or improper matter inserted in any pleading or to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of the court. (Code Civ. Proc. § 436.)

Here, defendant's demurrer to the only cause of action in the SAC supporting a prayer for punitive damages, the fifth cause of action for fraudulent concealment, has been sustained. Absent a cause of action asserting fraud as an element the Court finds there is no basis for assessing punitive damages. Accordingly, the motion to strike the prayer for punitive damages is GRANTED.

The Court notes that of the remaining four causes of action alleged in the SAC, damages for the first three are set forth in the Song-Beverly Consumer Warrant Act, Civil Code section 1794 and do not include punitive damages. Though the double civil penalties “have been likened by courts to punitive damages” they are not in fact punitive damages. (See *Suman v. Superior Court* (1995) 39 Cal. App. 4th 1309, 1317.)

The last cause of action for a breach of implied warranty of merchantability fares no differently:

As defined in the Act, an implied warranty of merchantability guarantees that “consumer goods meet each of the following: [¶] (1) Pass without objection in the trade under the contract description. [¶] (2) Are fit for the ordinary purposes for which such goods are used. [¶] (3) Are adequately contained, packaged, and labeled. [¶] (4) Conform to the promises or affirmations of fact made on the container or label.” (Civ.Code, § 1791.1(a).)

(*Mocek v. Alfa Leisure, Inc.* (2003) 114 Cal.App.4th 402, 406.)

It is true that “[w]hen there has been a breach of the implied warranty of merchantability, a buyer ‘may bring an action for the recovery of damages and other legal and equitable relief’ (Civ.Code, § 1794, subd. (a))” (*Ibid.*), fraud must be alleged with sufficient specificity for defendant to fully understand the nature of the charge. (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Generally, such specificity requires pleading facts that “show how, when, where, to whom, and by what means the representations were tendered.” (*Ibid.*)

As stated above, there are no causes of action in the operative pleading alleging a basis supporting punitive damages, a point conceded by plaintiff’s lack of an opposition to the instant motion.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for defendant shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 6

25-CIV-00410

DUJUAN GREEN VS. GENERAL MOTORS, LLC

DUJUAN GREEN
GENERAL MOTORS, LLC

DAVID N. BARRY
RYAN KAY

PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS PURSUANT TO CIVIL CODE SECTION 1794(d)

CONTINUED FROM 6/30/2026

TENTATIVE RULING:

Plaintiff Dajuan Green's Motion for Attorneys' Fees, Costs and Expenses is GRANTED-IN-PART pursuant to Civil Code section 1794 and the terms of the parties' settlement agreement.

On January 17, 2025, this Song-Beverly case was filed and on October 10, 2025, the parties filed a notice of conditional settlement. The only activity in the court file was a motion for a protective order filed by defendant on May 20, 2025, but this court vacated the hearing and ordered the parties to meet-and-confer to see if they could resolve the motion and the parties did resolve the motion.

Generally in this county, the parties have been able to negotiate their attorneys' fees in Song-Beverly actions without the necessity of bringing a motion. No agreement was reached in this case and plaintiff filed this motion, which defendant has vigorously opposed.

As the prevailing party, plaintiff's counsel are entitled to their attorneys' fees. A buyer who prevails in an action under the Song-Beverly Warranty Act is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105 (*Reynolds*).) The Legislature has recognized that lawyers who take on Song-Beverly cases that seek to vindicate fundamental public policies should receive reasonable attorneys' fees. (*Reynolds*, at p. 1111.)

Attorneys' fees in a Song-Beverly case are based upon the lodestar method. (*Reynolds, supra*, 47 Cal.App.5th at p. 1112.) California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 [internal quotations and citation omitted].) "The major factors the trial court must consider in determining an attorneys' fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney's success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on
